

CONFLICT CHECK PROCEDURE

Standard operating procedure for client and matter conflict screening

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Sample prepared with invented facts. No client information.

1. Purpose

This procedure sets out how a new inquiry is screened for conflicts of interest before the firm opens a matter, and how the screening is recorded.

A conflict check protects the firm, not the file. A missed conflict can disqualify the firm from the matter, void the engagement, expose the firm to a malpractice claim, and result in disciplinary action. The check is therefore run on every inquiry without exception, including inquiries the attorney is confident about.

Governing standard. The obligations behind this procedure sit in the ABA Model Rules of Professional Conduct — Rule 1.7 (current clients), Rule 1.9 (former clients), and Rule 1.10 (imputation across the firm) — as adopted in the applicable state. This document is an administrative procedure. It does not interpret those rules, and every determination is made by an attorney.

2. When the check is run

A check is opened once the prospective client has given identifying information only: their name, the adverse party's name, any related entity, and the type of matter. It is completed before the consultation is scheduled and before the substance of the matter is taken — the facts, the merits, and any documents.

Identifying details are needed to run the check. The account of the dispute is not, and is not taken until the check is clear. The order matters: if the full account is taken and a conflict then emerges, the firm holds a stranger's confidential version of a dispute it cannot act in — which can also disqualify it from acting for the opposing party, who may already be a client.

The check is re-run in four further situations:

- A new party is added to an existing matter, including a co-defendant, third party, or newly identified insurer.
- A corporate client discloses a parent, subsidiary, or affiliate not previously named.
- The firm is asked to take on a second matter for an existing client.
- An attorney or staff member joins the firm, in which case their prior client list is screened against all open matters.

3. What is searched

The prospective client's name alone is not a conflict check. Six categories are searched, each as a separate query:

1. **The prospective client** — full legal name.
2. **Known aliases** — maiden and former names, trading names, anglicized or shortened forms, common misspellings.
3. **The adverse party** — individual or entity.

4. **Related entities** — parent companies, subsidiaries, and named directors, officers, partners, or members on either side.
5. **Related individuals** — spouses, family members, business partners, and employers named in the inquiry.
6. **Material third parties** — insurers, expert witnesses, and any other party the firm is known to have a relationship with, where named in the inquiry.

4. Where it is searched

- The case management system, with the archive filter switched on. Closed matters carry a continuing duty of confidentiality and must be searched, not skipped.
- Any pre-CMS record — legacy spreadsheets, historic file indexes, or paper file lists — for firms whose archive predates the current system.
- The firm's declined-matters log, where one is kept. A consultation that never became a matter can still have transferred confidential information.

5. How to run it

1. Open a conflict check record against the inquiry reference before searching.
2. Search each of the six categories in section 3 separately. Do not combine names into a single query — a combined search will miss partial matches.
3. Search surname alone as well as full name. Search entity name without the corporate suffix as well as with it.
4. Record every system searched and the date, including systems that returned nothing.
5. Where nothing is found, mark the record clear, log it, and route the file forward.
6. Where anything is found — including a name that merely resembles a match — mark the record as a possible match and escalate. Do not evaluate it.

6. Escalation

A possible match is escalated to the supervising attorney the same working day, with:

- The matching name and where it appeared.
- The matter reference, status, and closing date of the earlier file.
- The relationship of the matched party to the current inquiry.
- No assessment of whether a conflict exists.

The matter does not progress — no consultation, no engagement letter, no file opening — until the attorney records a determination.

How the match is described

The strength of a match turns on how the matched person stands in relation to the firm, not on how similar the two matters are. Four categories, in ascending order of seriousness:

- **Connected to a client** — a spouse, relative, or employee of a client. Never a client of the firm in their own right.
- **Former opponent** — the firm previously acted against this person on behalf of someone else.
- **Former client** — the firm acted for this person and the matter has closed. The duty of confidentiality continues and does not expire.
- **Current client** — the firm acts for this person now.

State which category the match falls into and nothing further.

Consent and waivers

A confirmed match is not automatically a declined matter. In defined circumstances a firm may act with the informed written consent of the person to whom the duty is owed, and in some cases with additional safeguards. That route is opened, assessed, and pursued by the attorney alone. The assistant does not contact a former client to seek a waiver, and does not raise the possibility with the prospective client.

7. The assistant's boundary

Four things sit outside this role, and stating them plainly is part of the procedure:

- A conflict is never cleared by the assistant. State the factual connection between the matched name and the current inquiry; do not state whether that connection creates a conflict.
- A match is never withheld because it appears unrelated. The assessment of relevance belongs to the attorney, including where the absence of any connection seems obvious.
- A check is never skipped because the attorney has said it is unnecessary.
- Confidential detail from a matched file is never restated to the new inquirer or to anyone outside the firm.

8. Recording the result

A clear result that was not recorded is worth nothing when the file is reviewed a year later. Every check produces a log entry, whether it was clear or not, capturing: date, the person who ran it, every name searched, every system searched, the result, and the attorney's determination where one was required.

Worked example — conflict check log entry

Matter reference	2026-INQ-0148	Date checked	March 4, 2026
Prospective client	Adaeze N. Okorie	Checked by	P. Obisike, Legal Assistant
Adverse party	Brightline Logistics LLC	Systems searched	Clio (active + archived); closed-file index 2016–2021
Related names run	A. Okorie; Ada Okorie-Vance; Brightline Logistics; M. T. Ruiz (member)	Result	One possible match — escalated
Match detail	M. T. Ruiz appears as a former individual client, matter closed 2019	Attorney determination	Pending — referred to J. Halloran, Esq., March 4, 2026

All names, references, and dates above are invented for illustration.

9. Version control

Version 1.1. This procedure is reviewed annually and on any change to the firm's case management system or to the applicable state rules of professional conduct. It is used alongside the firm's conflict check log, which holds the record of each check run.
